EXHIBIT 4

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

KATHLEEN MOLLER	:	CIVIL ACTION NO.
vs.	:	24-0228-WBV-DPC
MARTIAN SALES, INC; JOPEN, LLC, a Texas limited liability company; JOHNSON FOODS, LLC, a Wyoming limited liability company; LP IND., LLC, a Wyoming limited liability company; CAG HOLDINGS, LLC, a Wyoming limited liability company; RMH HOLDINGS, INC., a Wyoming corporation; ABC INSURANCE COMPANY, and John Does 1-4.	:	Judge Wendy B. Vitter MAGISTRATE DONNA PHILLIPS CURRAULT

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October 28, 2024

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Videotaped deposition of MARK REILLY, taken pursuant to notice, at the location of the witness, Seattle, Washington, commencing on the above date at or about 9:00 a.m. PST/12:00 p.m. EST before Eileen P. Barth, C.S.R., N.P.

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Job No. MDLG6937333

MS. PAYTON: Object to the form.

THE WITNESS: I do, yes.

BY MR. COWGILL:

Q. Is A1 Wholesale an exclusive distributor for Martian Sales?

A. I wouldn't say it's exclusive, but it's, like, the only one that I'm using right now.

Q. When did you first start working with A1?

MS. PAYTON: I'm so sorry. I missed the end of the question.

BY MR. COWGILL:

Q. When did you start --

MS. PAYTON: When did you start --

BY MR. COWGILL:

Q. When did you first start working with A1 Wholesale?

A. Maybe back in, like, 2015.

Q. And a moment ago, you testified that A1 Wholesale is the only distributor you're working with right

processor, then to the packager?
A. Correct.
Q. And --
A. Could I get some water?
MS. PAYTON: Yeah.
BY MR. COWGILL:
Q. During what time frame has Martian Sales been working with Nuza?
A. Maybe since, like, 2018 or '19. No. Probably -- 2020, maybe.
Sorry. I'm really bad with time.
Q. Is Nuza located in Louisiana?
A. No.
Q. Where is Nuza located?
A. I want to say they're based out of Atlanta.
Q. Atlanta?
A. Yes, sir.
Q. Caliber -- or Calibre Manufacturing, you're familiar with that entity?
A. Yes, sir.

Q. What sort of work does Calibre do on behalf of Martian Sales?
A. They do the encapsulation.
Q. And just so I understand, is that literally putting kratom powder into capsules?
A. Yes, sir.
Q. And what time frame -- in what time frame have Calibre and Martian Sales been working together?
A. Maybe just the past couple years, like three or four.
Q. So roughly 2021 until today?
A. Roughly, correct.
Q. And is Calibre located in Louisiana?
A. No.
Q. Where are they located?
A. Georgia.
Q. Where in Georgia?
A. I guess the Atlanta area.
Q. And I think you testified earlier that you recognized the entity Advanced Nutrition?

A. Yes.
Q. And has Martian Sales done any work with Advanced Nutrition?
A. Yes, sir.
Q. What sort of work?
A. They did some -- also encapsulation.
Q. During what time frame?
A. Maybe '15 to '19 or something to that extent, 2015 to 2019.
Q. Was Advanced Nutrition located in North Carolina?
A. Say again?
Q. Advanced Nutrition, was it located in North Carolina?
A. No.
Q. Where was it located?
A. Georgia.
Q. In the Atlanta area?
A. Yeah.
Q. So not located in Louisiana?
A. Correct. Not located in Louisiana.
Q. All right. And earlier you

aware of Olistica Life Sciences Group being involved in that work at RMH?

A. That's just where I heard about it.

Q. Who did you hear about it from?

A. I can't remember.

Q. I think you testified earlier that you recognized LIV Group, LLC; is that correct?

A. Yes, sir.

Q. Has Martian done work with LIV Group, LLC?

A. Yes, sir.

Q. What sort of work?

A. They were doing the extraction.

Q. During what time period?

A. 2015 to 2018.

Q. Is LIV Group located in Louisiana?

A. No.

Q. Where are they located?

A. They were located in North

Q. All right. I want to ask you about this Paragraph 4 here that says, Martian Sales was incorporated in Wyoming on July 19th, 2012. Martian Sales' principal place of business is in Wyoming at 1621 Central Avenue, Cheyenne, Wyoming, 82001.

Do you see that?

A. I do.

Q. Earlier you testified that you founded Martian Sales in 2014.

Do you know why Martian Sales incorporated in Wyoming in 2012?

A. I just must have been misremembering.

Q. So when did you found Martian Sales?

A. I guess July 19th, 2012.

Q. And then this document reiterates or iterates a few things that I wanted to review, but it says, Martian Sales maintains no offices, places of business, post office boxes, or telephone listings in Florida and has never done

experts in botanical extraction in Louisiana?

A. I have not, no.

Q. Are you familiar with the Find the Store tab on your website?

A. I am.

Q. Let's see here.

Actually, let's look at Exhibit 13. This is the contact page for OPMS on the OPMS website.

Have you ever seen this page before?

A. I have seen that page before.

Q. Do you know where these contact requests go?

A. No.

Q. Do you know who receives them?

A. No.

Q. Do you know who responds to them?

A. No.

Q. Do you know if there's a

third-party contractor tasked with doing so?

A. No.

Q. And you understand that anyone who accesses the website can use this form; right?

A. I understand.

Q. And do you have any way of knowing, you know, whether you've been contacted through this website from individuals in Louisiana?

A. Wait. Sorry. Start over and say it again? I lost you there.

Q. No problem.

Do you have any way of knowing whether individuals in Louisiana have utilized this contact page?

A. I do not.

Q. But they could; right? Someone in Louisiana could access this and use this; right?

A. Yes, they could.

Q. All right. And I know here it talks about potential fake or

BY MR. COWGILL:

Q. And again, here it says, Distributed by Choice Organics, Los Angeles, California, made in the U.S.A.

You indicated you don't know where Choice Organics is; right?

A. Correct.

Q. Why does your website say that OPMS is distributed by Choice Organics?

A. Oh, I don't manage the website or the content on it, so I wouldn't know.

Q. So A1 is the only one who manages the content on the website?

A. Correct.

Q. Do you have access to the website? Are you able to log in and make alterations to this website?

A. Nope. I have the same access as you.

Q. So who has access to actually come in and edit the website?

A. I don't know.

MS. PAYTON: Object to the form. There's a citation right there on the paper.

MR. COWGILL: Yeah. That's for the next statement.

BY MR. COWGILL:

Q. Going here to Paragraph 14, it says that, It is estimated that between 11 and 16 million Americans use kratom regularly.

Do you see that?

A. I do see that.

Q. Do you know where that statement came from?

A. I don't know.

Q. Now, do you think, 11 to 16 million, fair to say there's probably a good number in Louisiana that use kratom regularly; right?

A. I don't even know to respond to that, honestly. I guess that's possible.

Q. There's this statement here, Paragraph 20, Kratom is a desirable

alternative to pharmaceutical opioids because it is not significantly addictive.

What basis do you have to say that kratom isn't significantly addictive?

A. I used kratom to get off heroin, and I managed to stop taking it much easier than I managed to quit heroin.

Q. Congratulations. That's --

MR. COWGILL: Sorry?

MS. PAYTON: Yeah, I'm going to object to the tone in which you said that to the witness. There's no need for mockery and humiliation. That was really uncalled for.

MR. COWGILL: Well, that's you mischaracterizing my tone.

BY MR. COWGILL:

Q. I am genuinely happy for you, Mark. That is seriously a success, and I'm happy for you.

your counsel?

A. Yes.

Q. Have you had any direct communication or contact with LP Ind.?

A. No, I don't think so.

MR. COWGILL: I want to introduce Exhibit 28. This is another document from the docket in the Weber case filed in Fulton County, and this is an exhibit to a motion, and this is Defendant LP Ind.'s Supplemental Responses and Objections to Plaintiff's Interrogatory Numbers 3, 4, 5, 7 and 8.

BY MR. COWGILL:

Q. Are you able to see this clearly?

A. Yeah.

Q. All right. So a couple things to review here.

So Interrogatory Number 7 says, Identify every person including job title and dates of employments

responsible for OPMS Kratom labeling and warnings.

And there's a supplemental response which states, Defendant LP stands on its original response that there is no information responsive to this interrogatory. Defendant LP further states Defendant Martian Sales identified Mark Reilly in response to this interrogatory.

Now, do you have any understanding of why you were identified in response to this interrogatory?

A. No. I don't really understand.

Q. So are you, in fact, responsible for OPMS Kratom labeling and warnings?

A. No.

Q. I think you've testified today that A1 is; is that right?

A. Correct.

Q. And I think we covered as well that A1 is a d/b/a for JOPEN, LLC?

Kratom and how it differs in comparison to the role of the other OPMS Defendants, including Peyton Palaio, LP Ind., LLC, and LGI Holdings, LLC.

There's objections here, and then subject to and without waiving those objections, it says, Martian Sales owns the trademark for OPMS Kratom products. Otherwise, Martian Sales does not have sufficient information or understanding to answer this interrogatory.

So I want to understand. We talked today about your role regarding OPMS Kratom, and one of those things is owning the trademarks; right?

A. Yes.

Q. Martian Sales has also developed the specifications for the cold water extraction process for actually creating OPMS extracts; is that right?

A. Yes.

Q. And Martian Sales has contracted with other entities to obtain raw kratom for processing for OPMS

Kratom?

A. Yes.

Q. And it's contracted with other entities to distribute OPMS-branded products throughout the country?

A. Correct, sir.

Q. So with regards to these entities named here, you know, what is Peyton Palaio's role with regards to OPMS Kratom, if any?

A. None.

Q. I think you testified earlier he's just worked for some of the processing entities as either a manager or a member in some capacity?

A. Exactly.

Q. So Peyton's role is limited to being a manager or a member of these entities that process OPMS Kratom?

MS. PAYTON: Object to the form.

THE WITNESS: Yes.

BY MR. COWGILL:

Q. And LP Ind.'s role, if I

understand correctly, is limited to process and [inaudible] OPMS Kratom?

A. Yes, sir.

MS. PAYTON: Wait. Object to the form.

I'm sorry. What was the question?

MR. COWGILL: Court reporter, can you read it back? I don't remember exactly.

THE COURT REPORTER: I was going to ask the same thing because the end cut out for me.

And Palaio's role is limited to being a manager or member of the entities -- and that's where it went out on me.

I'm sorry.

And LP Ind.'s role, if I understand it correctly, is limited to process...

BY MR. COWGILL:

Q. Okay. LP Ind.'s role is limited to processing raw kratom for